

BEFORE THE
FEDERAL MARITIME COMMISSION

DOCKET NO. 17-05

CMI DISTRIBUTION, INC.

COMPLAINANT,

v.

SERVICE BY AIR, INC., RADIANT CUSTOMS SERVICES INC. (FORMERLY KNOWN
AS SBA CONSOLIDATORS, INC.) and LAS FREIGHT SYSTEM LTD.

RESPONDENTS.

**SERVICE BY AIR, INC.'S RESPONSE TO
CMI DISTRIBUTION, INC.'S MOTION FOR LEAVE
TO FILE RESPONSE TO SBA REPLY**

CMI Distribution, Inc. (“CMI”) offers no procedural or substantive rationale as to why it should be allowed to file additional briefing other than its self-serving and unsubstantiated assertion that the response to its fee petition filed by Service by Air, Inc. (“SBA”) contains “certain misleading and inaccurate representations.” CMI’s motion altogether ignores procedural regulations governing FMC motion practice, failing to explain why they should not apply. While CMI’s position is clearly unfounded (as is demonstrated by citations to the record in SBA’s brief), CMI also offers no explanation why complete briefing of its view of the circumstances was not presented in its petition.

SBA sees nothing in CMI’s proposed sur-reply that should alter the analysis. Indeed, CMI ignores SBA’s most salient points, such as SBA prevailing on most underlying issues and the equities resting with SBA and not CMI as to the accrual of demurrage obligations. That said, SBA will not oppose CMI’s motion to file a sur-reply so long as SBA is given an equal opportunity to file a sur-reply responding to CMI’s sur-reply.

Dated this 29th day of September, 2021.

Respectfully submitted,



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Attorney for Respondents

CERTIFICATE OF SERVICE

The undersigned declares that on the date stated below I caused to be served the foregoing document, upon the following in the manner of service indicated:

Brendan Collins
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Attorneys for CMI Distribution, Inc.

- ☒ Via First Class U.S. Mail
- ☐ Via Priority Mail Express
- ☐ Via Express Mail
- ☐ Via Hand Delivery
- ☒ Via Electronic Mail
- ☐ Via E-Service Within Clerk's online eFiling Application

I declare under penalty of perjury under the laws of the state of Washington that the foregoing is true and correct.

Executed at Seattle, Washington, this 29th day of September, 2021.



Alisa Flabel